

ATTACHMENT C JOINT VENTURE PROCEDURE

Joint Ventures. Small Business Joint venture agreements shall demonstrate compliance with applicable Joint venture regulations under FAR Part 19. All Joint ventures should submit the information requested below:

- (1) A fully executed copy (signed by both parties) of their Joint Venture agreement; and
- (2) The following information, unless explicitly stated in the joint venture agreement:
 - (a) The relationship of the joint venture parties in terms of business ownership, capital contribution, and profit distribution or loss sharing;
 - (b) The management approach of the joint venture in terms of who will conduct, direct, supervise and control the project and have custody and control of the assets of the joint venture and perform the duties necessary to complete the work;
 - (c) The structure of the joint venture and decision-making responsibilities of the joint venture parties in terms of who will control the manner and method of performance of the work;
 - (d) The identification of Key Personnel who will have authority to legally bind the joint venture to subcontracts and who will provide or contract for the labor and materials for the joint venture;
 - (e) The identification of personnel who will maintain the joint venture bank accounts for the payment of all expenses and the deposits of all receipts, who will keep the books, and records, and who will pay applicable taxes for the joint venture;
 - (f) The identification of persons who will furnish the facilities, such as office supplies and telephone service; and
 - (g) The identification of the personnel who has overall control of the joint venture.

The above information is requested at a minimum. The requirements of FAR Part 19, as applicable to the particular type of small business, will control as to whether the joint venture is eligible for award of the Contract.

Other sections of the proposal should identify, where appropriate, whether Key Personnel are employees of the individual joint venture parties, and identify the party, or hired as employees of the joint venture.